

money may also be applied in discharge of any charge created on a holding under the Act in respect of any such improvement as aforesaid, as in discharge of an incumbrance authorised by the Settled Land Act to be discharged out of such capital money.

18. **Subject to direction of tenant for life.**— By sect. 22, subsect. (1), capital money arising under the Act is to be paid either to the trustees of the settlement or into Court, at the option of the tenant for life, and is to be invested or applied by the trustees, or under the direction of the Court, as the case may be accordingly.

Subsect. (2). The investment or other application by the trustees is to be made according to the direction of the tenant for life, and in default thereof, according to the direction of the trustees, but in the last-mentioned case subject to any consent required or direction given by the settlement with respect to the investment or other application by the trustees of the trust money of the settlement; and any investment is to be in the names or under the control of the trustees.

Subsect. (3). The investment or other application under the direction of the Court is to be made on the application of the tenant for life, or of the trustees.

Subsect. (4). Any investment or other application is not during the life of the tenant for life to be altered without his consent.

Subsect. (5). Capital money arising under the Act, and the securities arising from the investment thereof, are for all purposes of disposition, transmission, and devolution, to be considered as land, and to be held and go accordingly.

Subsect. (6). The income of the securities is to be paid or applied as the income of the land, if not disposed of, would have been payable or applicable under the settlement.

Subsect. (7). The securities may be converted into money, which is to be capital money arising under the Act

[*565] * It will be observed that the tenant for life may *direct* in what manner, consistently with the Act, the capital money is to be invested or applied, and the duty of the trustees in carrying out such directions is purely ministerial, and, except where the consent or approval of the trus-